

Raj Kumar v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 28 February 2023 · Writ - C No. 6936 of 2023 · **Theft recovery withdrawn; writ disposed for a fresh Supply Code order.**

HEADNOTE

A writ against a theft-of-electricity recovery notice is disposed of where the electricity department withdraws the demand and undertakes to pass a fresh order after hearing the consumer, with liberty to do so only by following the procedure in the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Raj Kumar filed a writ petition in the High Court of Judicature at Allahabad challenging a demand notice dated 18 April 2022. The electricity department sought to recover Rs.74,857 from him in a case of alleged theft of electricity. The State of Uttar Pradesh and three other respondents were impleaded. Before the Division Bench, counsel for the electricity department stated that the impugned recovery had been withdrawn and that a fresh order would be passed after the petitioner was given an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Fresh order after withdrawal of a theft recovery

HOLDING

The writ is disposed of on the electricity department's statement that the recovery notice dated 18 April 2022 for Rs.74,857, issued in a theft case, stands withdrawn. The department may pass a fresh order only after giving the petitioner an opportunity of hearing and after following the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG no clause number cited; order invokes the Supply Code generally

PRINCIPLE TAGS

fresh-order-must-follow-supply-code-procedure After the department withdrew the theft recovery of Rs.74,857, the Court disposed of the writ and left the department free to pass a fresh order only after hearing the petitioner and following the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY SUM IS RECOVERABLE FROM THE PETITIONER FOR THE ALLEGED THEFT OF ELECTRICITY

The impugned recovery was withdrawn without a finding on the theft allegation. Any fresh demand is left to a later order after hearing. ¶ 1